

26STCP01180 26STCP01180

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CHURCH OF SCIENTOLOGY INTERNATIONAL,

Petitioner,

Case No.

26STCP01180

vs.

CITY OF LOS ANGELES, et al.,

Respondents.

[TENTATIVE] RULING ON DEMURRER TO VERIFIED

PETITION FOR WRIT OF MANDATE

Dept. 836 (Hon. Curtis A. Kin)

Respondent

City of Los Angeles ("City") demurs to the Verified Petition for Writ of

Mandate on the ground that it fails to sufficiently allege that Petitioner Church of Scientology International

("Church") is entitled to the requested investigatory records. For the reasons

stated below, the demurrer is SUSTAINED.

I. BACKGROUND

Petitioner Church brings

this California Public Records Act ("CPRA") action against the City, claiming that City has refused to produce investigative records pursuant to Government Code § 7923.605. (Pet. ¶ 1.) Petitioner specifically seeks records "related to false claims made to the [Los Angeles Police Department] by an individual identified as "Jen. B" on April 21, 2018 about "[petitioner], its members, or its agents repeatedly trespass[ing] onto her property, harass[ing] and stalk[ing] her family." (Pet. ¶¶ 2, 17.) The investigation was led by LAPD Detective Javier Vargas, who is now retired. (Pet. ¶¶ 1, 17.) On information and belief, petitioner alleges that Jen B. made additional reports to Vargas about the frequency of the trespassing, and that Vargas identified the perpetrator as Donna Barstow. (Pet. ¶¶ 18-19.) Jen B. was under the impression that Barstow was a private investigator for petitioner. (Pet. ¶¶ 17, 21.)

Petitioner further alleges that Vargas presented Jen B.'s claims to Deputy District Attorney ("DDA") Reinhold Mueller, despite there being no evidence to support her claims. (Pet. ¶¶ 21, 23.) DDA Mueller is alleged to have repeated these assertions relating to Barstow "in open court proceedings as an example of 'Scientology's alleged harassment' of Jen B." (Pet. ¶ 23.) Following these events, petitioner filed a criminal complaint with former LAPD Chief Michel Moore about Jen B.'s false reports on April 24, 2023, but this complaint was ignored by law enforcement. (Pet. ¶ 24.) On April 20, 2025, petitioner submitted a CPRA request to the LAPD, "requesting records regarding Jen B.'s false allegation that the Church directed or hired someone to 'trespass' on her property to intimidate her." (Pet. ¶ 27.) In the request, petitioner claimed to be a victim of the false reports of alleged criminal activity. (Pet. ¶ 27 & Ex. 1.) On May 29, 2025, the LAPD CPRA Unit denied petitioner's records request on the basis that the crime report does not identify petitioner as the victim. (Pet. ¶ 30 & Ex. 2.)

On March 23, 2026, petitioner filed the operative Verified Petition for Writ of Mandate, Injunctive Relief, and Declaratory Relief for Violation of Cal. Gov't Code § 7923.605. Petitioner asserts the following causes of action: (1) writ of mandate pursuant to CCP § 1085; (2) injunctive relief; and (3) declaratory relief. In the Prayer for Relief, petitioner seeks a writ of mandate compelling LAPD to "(1) conduct an adequate search to locate and identify any and all records in the LAPD's possession, custody or control that are responsive to Petitioner's § 7923.605 CPRA request; and (2) produce all responsive records[.]" (Pet. Prayer for Relief ¶ 1.) Petitioner also seeks an injunction preventing LAPD from withholding records responsive to

its CPRA request and declaratory relief that disclosure is warranted per the CPRA and Article I, Section 3(b) of the California Constitution. (Pet. Prayer for Relief ¶¶ 2-3.)

On May 26, 2026, the City filed a demurrer to the Petition. On August 19, 2026, petitioner filed an opposition. On August 24, 2026, the City filed a reply.

II. DISCUSSION

A.

Request for Judicial Notice

The City's request for judicial notice of the Order Sustaining Demurrer to Petition for Writ of Mandate in Church of Scientology v. City of Los Angeles, Los Angeles Superior Court, case number 26STCP01167, is GRANTED pursuant to Evidence Code § 452(d).

B.

The Petition Fails to Sufficiently Allege an Entitlement to the Requested Records Pursuant to Government Code § 7923.605(a)

The City demurs to the petition on the ground that it fails to allege entitlement to the requested records pursuant to Government Code § 7923.605(a), as petitioner is not a victim to the reported incident. (Demurrer at 11-15.) The Court agrees.

It is undisputed that petitioner seeks investigatory records, which, per Government Code § 7923.600, are exempt from disclosure under the CPRA. (See Haynie v. Superior Court (2001) 26 Cal.4th 1061,1070.) Investigatory records may be disclosed, however, pursuant to an exception provided under Government Code § 7923.605(a). Section 7923.605(a) states in pertinent part:

Notwithstanding Section 7923.600 [which protects investigatory records from disclosure], a state or local law enforcement agency shall disclose the names and addresses of persons involved in, or witnesses other than confidential informants to, the incident, the description of any property involved, the date, time, and location of the incident, all diagrams, statements of the parties involved in the incident, the statements of all

witnesses, other than confidential informants, to the victims of an incident, or an authorized representative thereof

(Gov. Code § 7923.605(a) [emphasis added].)

While petitioner's allegations that false claims were submitted against it must be accepted as true for pleading purposes, the Court need not accept as true the legal conclusion that petitioner is a victim of the incident that was the subject of Jen B.'s complaint per Government Code § 7923.605(a). (See *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966–967; *Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.) To this end, the Court must give the statutory text of Section 7923.605(a) its plain meaning, and “look to the entire substance of the statute in order to determine the scope and purpose of the provision. That is, we construe the words in question in context, keeping in mind the nature and obvious purpose of the statute.” (In re Greg F. (2012) 55 Cal.4th 393, 406 [citations, ellipses and internal quotations omitted].)

Based on a clear reading of the statute, “incident” refers to the investigated matter for which the investigating officer obtained names of persons involved and witnesses, descriptions, and statements. Here, as alleged in the petition, Jen B. reported that she was the victim of alleged trespass, harassment, and stalking. (Pet. ¶¶ 2, 17-18.) That alleged trespass, harassment, and stalking is the incident in question with respect to Jen B. as victim. Indeed, the petition seeks records that were generated as a result of Jen B. having reported that perpetrators “repeatedly trespassed onto her property, harassed and stalked her family.” (Pet. ¶¶ 2, 27 & Ex. 1.) Therefore, in accordance with Government Code § 7923.605(a), Jen B. as the reported victim of the alleged incidents of trespass, harassment, and stalking, may be entitled to disclosure of the investigative records of the incidents, but petitioner would not.

Despite this straightforward application of section 7923.605(a)'s exception for disclosure of investigative records to victims of the incidents in question, petitioner claims that it is the victim here, because Jen B.'s statements to the police were false and “constituted a violation of Cal. Penal Code § 148.5, ‘False Report of Criminal Offense.’” (Pet. ¶ 5.)

Taking as true the allegations of Jen B. having made false statements to the police for purposes of the demurrer, petitioner may be the victim of

separate incidents involving false statements by Jen B. against the Church, but such allegations do not logically transform petitioner into the victim of the incidents involving trespass, harassment, and stalking against Jen B. Indeed, petitioner would appear to implicitly acknowledge these incidents are different by having made its own separate criminal complaint to the LAPD about Jen B.'s false reports. (See Pet. ¶ 24.) Moreover, petitioner's tortured reading of section 7923.605(a) would lead to absurd results, as a perpetrator of criminal activity would be able use the limited exception for a crime victim's access to investigative records to gain access to those same confidential records (which include the names, addresses, and statements of anyone involved in or witness to the crime) merely by claiming the victim had falsely reported the crime. That cannot be the result here.

Accordingly, because the petition fails to allege entitlement to the requested investigative records, the demurrer is SUSTAINED.

C. Leave to Amend is Unwarranted

"Where the defect raised by ... demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question." (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.) Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Id.)

As discussed above, a plain reading of Government Code § 7923.605(a) precludes the conclusion that petitioner is a victim of the incidents of trespass, harassment, and stalking reported by Jen B. Therefore, there is no reasonable way for petitioner to cure this defect, and leave to amend is not warranted.

III. CONCLUSION

The demurrer to the Petition is SUSTAINED per CCP § 430.10(e) without leave to amend. Respondents shall submit a Proposed Judgment of Dismissal.